

COMPLAINT NO. 2023-00264

IN THE MATTER OF

DAVID W. ROGERS

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**BEFORE THE TEXAS BEHAVIORAL
HEALTH EXECUTIVE COUNCIL**

**THE TEXAS STATE BOARD
OF EXAMINERS OF
PROFESSIONAL COUNSELORS**

AGREED ORDER FOR ELIGIBILITY

Pursuant to its authority under §507.305 of the Texas Occupations Code, §2001.056 of the Government Code, and 22 Texas Administrative Code §884.12(e), the Executive Director for the Texas Behavioral Health Executive Council ("Council") hereby approves, ratifies, and enters this Agreed Order for Eligibility with the following Findings of Fact, Conclusions of Law, and Order of the Council, which have been approved and accepted by **DAVID W. ROGERS** ("Respondent").

FINDINGS OF FACT

1. Respondent is currently an applicant for licensure as a Professional Counselor and is, therefore, subject to the jurisdiction of the Council under the Act.
2. Respondent failed to timely renew his license as a Professional Counselor (#67878), which expired on April 30, 2021.
3. Respondent continued to advertise himself as a Licensed Professional Counselor from April 30, 2021 to the present.

CONCLUSIONS OF LAW

1. Respondent voluntarily submitted an application to the Council and, therefore, is bound by the provisions of Chapters 503 and 507 of the Texas Occupations Code and the Rules of the Council, 22 Texas Administrative Code Parts 30 and 41.
2. Respondent's practice and representation as a licensed professional counselor without an active license constitutes a violation of Council Rule 22 TAC §882.23 (a) and (c) pertaining to License Required to Practice, 22 TAC §882.21(c) and (g) pertaining to License Status, and Texas Occupations Code §503.301 pertaining to License Required.
3. Based on the above-stated Findings of Fact, Respondent's application is subject to abatement for up to 180 days, pursuant to Council Rule §882.10, before the Council must render a decision upon the application.

ORDER

IT IS HEREBY ORDERED, ADJUDGED, AND DECREED THAT:

Respondent shall, within ninety (90) days of the effective date of this order and prior to the issuance of a license, do the following:

1. Respondent shall complete and submit proof of completion of three (3) hours of professional development relating to professional ethics or Council rules, or any combination thereof. This professional development is in addition to the professional development hours required for license renewal. Respondent will pay all costs of the coursework.
2. Respondent is assessed, and shall pay an administrative penalty in the total amount of \$2,000.00; of which \$1,500.00 represents administrative costs and \$500.00 represents administrative penalty.

In the event Respondent fails to comply with any term of this order required to be completed prior to licensure, Respondent's license application shall be denied, without further hearings, informal settlement procedures, or any right of appeal for judicial review, and the Council shall not consider a subsequent application for licensure from Respondent, and Respondent agrees not to apply for any new license from the Council for one year from the effective date of this order.

3. Upon issuance, Respondent's license is REPRIMANDED.

WARNING

RESPONDENT'S FAILURE TO COMPLY WITH ONE OR MORE TERMS OF THIS ORDER MAY CONSTITUTE A VIOLATION OF 22 TEXAS ADMINISTRATIVE CODE §884.55 REQUIRING FURTHER DISCIPLINARY ACTION.

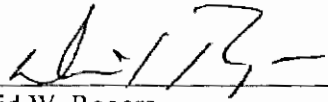
WAIVERS

On the underlying licensing/professional/investigative file, Respondent has freely and voluntarily waived his or her right to an informal settlement conference, a formal hearing before an Administrative Law Judge at the State Office of Administrative Hearings (SOAH), and judicial review pursuant to Texas Government Code Chapter 2001, in exchange for the conditions set out in this Agreed Order.

THE RESPONDENT, BY SIGNING THIS ORDER, AGREES TO ITS TERMS, ACKNOWLEDGES UNDERSTANDING OF THE FORMAL NOTICES, FINDINGS OF FACT, AND CONCLUSIONS OF LAW SET FORTH HEREIN AND COVENANTS TO SATISFACTORILY COMPLY WITH THE MANDATES OF THIS ORDER IN A TIMELY MANNER. RESPONDENT FURTHER ACKNOWLEDGES AND AGREES THAT HE OR

SHE HAS AGREED TO THIS ORDER UPON THE ADVICE AND CONSENT OF COUNSEL,
OR THAT HE OR SHE HAS HAD THE OPPORTUNITY TO HAVE THIS ORDER
REVIEWED BY COUNSEL OF HIS OR HER CHOICE.

FOR THE RESPONDENT:



David W. Rogers

DATE SIGNED: 4/4/23

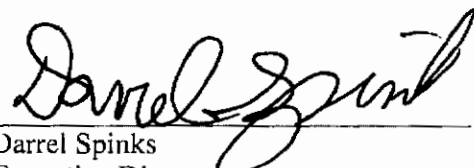
FOR THE STAFF OF THE COUNCIL:



Victoria Benitez
Texas Bar No. 02134350
Staff Attorney
Texas Behavioral Health Executive Council
1801 Congress Ave., Ste. 7.300
Austin, Texas 78701

DATE SIGNED: 4/5/23

APPROVED, RATIFIED, AND ENTERED THIS 5 DAY OF April, 2023.



Darrel Spinks
Executive Director
Texas Behavioral Health Executive Council